



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

APR 17 2002

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12986

EXPIRATION DATE: September 30, 2002

1. GRANTEE: Columbia Gas Transmission Corporation
Fairfax, VA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the use of an FRP-1, non-DOT specification cylinder for the transportation in commerce of natural gas subject to the limitations and special requirements specified herein. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302(a)(1) in that a non-DOT specification packaging is not authorized except as specified herein.
5. BASIS: This exemption is based on the application of Columbia Gas Transmission Corporation dated April 16, 2002, submitted in accordance with § 107.117 and a determination that it is necessary for the protection of life and the environment.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Natural gas, compressed	2.1	UN1971	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification, fiber reinforced plastic (FRP), full wrapped (FC) composite cylinder manufactured and marked DOT-E 10256-3600.

b. TESTING - Each cylinder must be reinspected and hydrostatically retested every three years in accordance with § 173.34(e), as prescribed for DOT Specification 3HT cylinders, except that the rejection elastic expansion does not apply and the permanent volumetric expansion may not exceed 5 percent of the total volumetric expansion at test pressure. Retest dates must be stamped on the exposed metallic surface of the cylinder neck or marked on a label securely affixed to the cylinder and overcoated with epoxy near the original test date. Reheat treatment or repair of rejected cylinders is not authorized.

c. OPERATIONAL CONTROLS -

(1) Cylinders may be manifolded in groups of four.

(i) Each cylinder must be equipped with an individual shutoff valve that must be tightly closed while in transit. Manifold branch lines of these individual shutoff lines must be sufficiently flexible to prevent damage to valves which otherwise might result from the use of rigid branch lines. A temperature measuring device may be inserted in one cylinder of a manifold installation in place of the shutoff valve.

(ii) Safety relief devices must be arranged to discharge upward and unobstructed to the open air in such a manner as to prevent any impingement of escaping gas on another cylinder or the motor vehicle.

(2) Cylinders that are horizontally mounted on a motor vehicle during transportation must comply with the requirements of § 173.301(1).

(3) This exemption is limited to those natural gas customers normally serviced by Columbia Gas Transmission Corporations' Brinker Storage Field in Leetonia, Ohio.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. Cylinder service life may not exceed 15 years from the date of manufacture marked on the cylinder.

c. A cylinder that has been subjected to fire may not be returned to service.

d. The motor carrier will comply with the loading and unloading requirements contained in §§ 177.834(a) through (j) as appropriate Division 2.1 materials.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

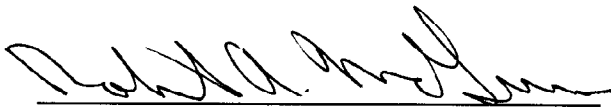
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, S.W., Washington,
DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: DL